

25TRCV00106 25TRCV00106

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Case Number: 25TRCV00106 Hearing Date: August 26, 2026 Dept: M

CONFIDENTIAL COURT DOCUMENT

(For Judge and Court Staff Only)

Honorable Amy N. Carter Wednesday, August 26, 2026

Department M Calendar No.

PROCEEDINGS

Esther

Zavala Saldana v. Sanghyun An, et al.

25TRCV00106

1. Sanghyun An, M.D.'s Motion for Summary Judgment

TENTATIVE RULING

Sanghyun An, M.D.'s Motion for

Summary Judgment is denied.

Background

Plaintiff filed the Complaint on January 13, 2025.

Plaintiff alleges the following facts. Plaintiff alleges that Defendants

committed dental malpractice related to a root canal treatment causing

Plaintiff's injuries.

Objections

Plaintiffs' Objections

Plaintiff's objections 1 to 9 are overruled. Plaintiff

objected to statements made in the separate statement of facts. Plaintiff did

not set forth objections to evidence in the manner required by Cal. Rules of

Court, Rule 3.1354(b). Plaintiff did not quote the specific objectionable piece

of evidence, but, instead, quoted Defendant's statements made in the separate

statement of facts.

Defendant's Objections

Defendant's objections 1 to 35 are overruled.

Motion for Summary Judgment

The purpose of a motion for summary judgment or

summary adjudication "is to provide courts with a mechanism to cut through the

parties' pleadings in order to determine whether, despite their allegations,

trial is in fact necessary to resolve their dispute." (Aguilar

v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c,

subdivision (c), requires the trial judge to grant summary judgment if all the

evidence submitted, and 'all inferences reasonably deducible from the evidence'

and uncontradicted by other inferences or evidence, show that there is no

triable issue as to any material fact and that the moving party is entitled to

judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7

Cal. App. 4th 1110, 1119.)

"On a motion for summary judgment, the initial burden

is always on the moving party to make a prima facie showing that there are no

triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005)

128 Cal. App. 4th 1510, 1519.) A

defendant moving for summary judgment or summary adjudication "has met his or

her burden of showing that a cause of action has no merit if the party has

shown that one or more elements of the cause of action . . . cannot be

established, or that there is a complete defense to the cause of action." CCP § 437c(p)(2). "Once the defendant . . . has met that

burden, the burden shifts to the plaintiff . . . to show that a triable issue

of one or more material facts exists as to the cause of action or a defense

thereto." CCP § 437c(p)(2). "If the

plaintiff cannot do so, summary judgment should be granted." Avivi

v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

"A plaintiff or cross-complainant has met his or her

burden of showing that there is no defense to a cause of action if that party

has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." Code Civ. Proc., § 437c(p)(1).

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

Defendant moves for summary judgment as to Plaintiffs'

Complaint. Defendant moves on the following grounds. "1. DR. AN met the standard of care in the community as it relates to his dental care and treatment of plaintiff; and 2. To a reasonable degree of medical probability, no act or omission on the part of DR. AN proximately caused or contributed to plaintiff's injuries." (Notice of Motion, p. 2, lines 7-10). The motion is supported by the expert declarations of Barry Vilkin, D.M.D. and Howard Pitchon, M.D.

Defendant has met his initial burden to show that

Plaintiff's cause of action has no merit by showing that one or more elements of the cause of action cannot be established.

(Defendant's Separate Statement of Facts and Supporting Evidence, 6-18.) Plaintiff has met her burden to provide specific facts to show that a triable issue of material fact exists as to her

cause of action. (Plaintiff's Response

to Separate Statement of Facts and Supporting Evidence, 6, 7, 9, 10, 14-18;

Plaintiff's Additional Facts and Supporting Evidence, 19-26; Decls., Andrew

Pallos, D.D.S.; Alan H. Gluskin, D.D.S.; Michael

Fitzgibbons, M.D.).

The standard of care with respect to acts of medical

professionals is exclusively within the knowledge of experts, and, thus,

whether the medical professional met or breached the standard of care can only

be established by expert testimony. See

Landeros v. Flood (1976) 17 Cal.3d 399, 410. Here, Defendant submitted the competent

expert declaration of Barry M. Vilkin,

D.M.D., M.Sc.D. Dr. Vilkin opines that Defendant

complied with the applicable standard of care and that no act or omission of

Defendant caused or contributed to Plaintiff's injuries. (Decl., Barry M. Vilkin, D.M.D., M.Sc.D., ¶¶ 7-10.) Defendant also submitted the competent

expert declaration of Howard Pitchon, M.D to testify as to the matter of

infectious diseases. Dr. Pitchon opines that no act or omission of Defendant caused or contributed to Plaintiff's injuries.

(Decl., Howard Pitchon, M.D., ¶¶ 6-8.)

Plaintiff met her burden to provide competent expert

testimony to controvert the opinions of Defendant's experts. Willard v. Hagemeister (1981) 121

Cal.App.3d 406, 412. Andrew Pallos, D.D.S. opines that Defendants failed to

comply with the applicable standard of care and that Defendant's breach of the

standard of care was a substantial factor in causing or contributing to

Plaintiff's injuries.. (Decl., Andrew Pallos, D.D.S., ¶¶ 6-18.) Specifically, Dr. Pallos opines that the root

canal treatment provided by Defendant fell below the standard of care and caused

Plaintiff's injuries. Similarly, Alan H. Gluskin, D.D.S. also testifies that

the care and treatment provided by Defendant fell below the standard of care

and caused Plaintiff's injuries. (Decl., Alan H. Gluskin, D.D.S., ¶¶ 10-23).

Finally, Plaintiff's infectious disease expert, Michael Fitzgibbons, M.D.,

testified that Defendant's acts or omissions caused, to a reasonably degree of

medical probability, Plaintiff's infection and resulting injuries. (Decl.,

Michael Fitzgibbons, M.D., ¶¶ 8-22).

Defendant argues that Plaintiff's experts ignored key

evidence in drawing their conclusions. However, the credibility and

persuasiveness of Plaintiff's evidence, based on her experts' declarations, are

not for determination with a motion for summary judgment, but, for a trier of

fact. Defendant also objects to the declaration of Plaintiff's infectious

disease expert arguing that he is not qualified to testify as to dentistry.

However, the Court notes that Defendant also submitted the declaration of an

infectious disease expert who was not a dentist to testify as to causation of

infections. Finally, Defendant's objections to Plaintiff's two dental experts

are not meritorious as the experts have identified their qualifications to

testify, the materials they relied upon, and set forth their opinions. Again,

whether the experts should have drawn different conclusions based on materials

that they should or should not have considered go toward their persuasiveness

and credibility and cannot be the basis for a denial of a motion for summary

judgment.

Therefore, Defendant's motion for summary judgment is

denied.

Plaintiff is ordered to give notice of this ruling.